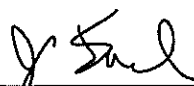


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, January 13, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-25275 against Police Officer Giancarlo Proietti, Tax Registry No. 963218. This case was conferenced on December 22, 2022, before Deputy Commissioner of Trials Rosemarie Maldonado, who approved the negotiated penalty of a Command Discipline Schedule B and the forfeiture of eight (8) vacation days, after Police Officer Giancarlo Proietti accepted the finding(s) of substantiation of the allegations contained in the Charges and Specifications.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

SEP 29 2023

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25275
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, PROIETTI	FIRST GIANCARLO	M.I. A	COMMAND 063 PRECINCT
SHIELD NO. 23706	TAX REGISTRY NO. 963218	SOCIAL SECURITY NO.		DATE APPOINTED 01/04/2017

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Giancarlo Proietti, on or about February 28, 2020, at approximately 2054, while assigned to 063 PCT and on duty, in the vicinity of Avenue H and E 56th St, Kings County, wrongfully used force, in that he pulled § 87(2)(b) out of a vehicle and onto the ground, without police necessity.	PLEADED GUILTY	VACATION DAYS 8.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

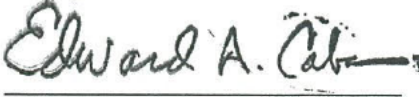

FIRST DEPUTY COMMISSIONER
3/30/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER
9/27/23
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, March 29, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-25275 against Police Officer Giancarlo Proietti, Tax #963218, for the forfeiture of eight (8) vacation days; I do not concur.

After reviewing the facts and circumstances disclosed in this investigation, I believe **No Disciplinary Action** is warranted. I disagree with the Civilian Complaint Review Board's conclusion, based on the relevant Body Worn Camera and facts of the case. A review of Body-Worn Camera footage show's Police Officer Proietti gave the complainant time to remove his personal items from the vehicle. After numerous commands to leave the vehicle, he refused. After the complainant attempted to remove the vehicle's keys from the ignition, Police Officer Proietti removed him from the vehicle. Police Officer Proietti's use of force was appropriate.

CCRB even notes in their Case Analysis Recommendation and Memorandum, that Police Officer Proietti ordered the complainant out of the vehicle numerous times and that he did not comply. They even note in their memorandum that "one can understand why Police Officer Proietti found it necessary to remove § 87(2)(b) from the vehicle in order to prevent him from moving the vehicle." Deputy Commissioner of Trials Rosemarie Maldonado stated during the settlement conference "I'm not sure if the evidence is an excessive force. Yes, there was force used, but I don't have the evidence."

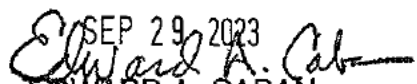
To issue discipline in this case would not be in the interests of justice. Therefore, the undersigned recommends **No Disciplinary Action**.

FOR YOUR CONSIDERATION.

EAC/rn


Edward A. Caban
FIRST DEPUTY COMMISSIONER

APPROVED

SEP 29 2023

EDWARD A. CABAN
POLICE COMMISSIONER